



CHAPTER xlii.

An Act to make provision as to the rates dues tolls and charges leviable at certain of the harbours docks and piers of the London and North Eastern Railway Company. A.D. 1924.

[14th July 1924.]

WHEREAS the London and North Eastern Railway Company (in this Act referred to as "the Company") were incorporated by the North Eastern Eastern and East Scottish Group Amalgamation Scheme 1922 made in pursuance of the Railways Act 1921 :

And whereas the undertaking of the Company includes the following harbour dock and pier undertakings namely Silloth Dock North Blyth Staiths South Blyth Staiths Percy Main (Northumberland Dock) Staiths Dunston Staiths West Dunston Staiths Tyne Dock the docks at Hartlepool and West Hartlepool Middlesbrough Dock the docks at Hull Lowestoft Harbour Harwich Quays and Piers Grimsby Docks Immingham Dock Winteringham Haven and Connah's Quay Dock :

And whereas the maximum rates dues tolls and charges which the Company are authorised to levy and make in respect of the said undertakings are prescribed by the Acts specified in the Schedule to this Act :

And whereas the rates dues tolls and charges which the Company may levy and make in respect of the said undertakings have from time to time been increased or

[Ch. xlii.] *London and North [14 & 15 Geo. 5.]*
Eastern Railway (Dock Charges) Act, 1924.

A.D. 1924. altered by Orders made by the Minister of Transport
— under the Harbours Docks and Piers (Temporary Increase
of Charges) Acts 1920 to 1922 :

And whereas the London and North Eastern Railway Harbours Docks and Piers (Temporary Increase of Charges) Order 1924 relating to the said undertakings was made under the said Acts on the twelfth day of February one thousand nine hundred and twenty-four which Order will expire on the fifteenth day of February one thousand nine hundred and twenty-five :

And whereas in order to enable the Company thereafter to levy and make adequate rates dues tolls and charges in respect of the said undertakings it is expedient that the operation of the said Order should be continued subject to the provisions in this Act contained for revision of the rates and charges authorised by the said Order :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Short title.

1. This Act may be cited for all purposes as the London and North Eastern Railway (Dock Charges) Act 1924.

Rates and charges.

2. The London and North Eastern Railway Harbours Docks and Piers (Temporary Increase of Charges) Order 1924 so far as it relates to the respective undertakings specified in the Schedule to this Act shall notwithstanding anything contained in the Harbours Docks and Piers (Temporary Increase of Charges) Acts 1920 to 1922 but subject to the provisions of this Act continue in operation until the first day of October one thousand nine hundred and twenty-nine.

Deposit of lists of pre-war charges.

3. The Company shall until the first day of October one thousand nine hundred and twenty-nine keep open for public inspection at their principal office at every harbour dock or pier mentioned in the Schedule to this Act the book or list specifying the charges to which the London and North Eastern Railway Harbours Docks

and Piers (Temporary Increase of Charges) Order 1924 A.D. 1924.
relates and which were in operation at such harbour
dock or pier on the thirty-first day of December one
thousand nine hundred and thirteen (or as regards the
King George's Dock Hull on the first day of June one
thousand nine hundred and fifteen) and the conditions
attaching to any such charges and the Company shall
deposit on or before the thirty-first day of December
one thousand nine hundred and twenty-four a certified
copy of each such book or list at the office of the Ministry
of Transport.

4.—(1) If at any time it is represented in writing to the Minister of Transport (in this section referred to as "the Minister")— Revision of rates and charges.

(a) by any chamber of commerce or shipping or any representative body of traders or any person who in the opinion of the Minister is a proper person for the purpose; or

(b) by the Company;
that under the circumstances then existing all or any of the rates dues tolls or charges authorised in pursuance of this Act should be revised the Minister may if he thinks fit at any time after the fifteenth day of February one thousand nine hundred and twenty-five make an order revising all or any of such rates dues tolls or charges as aforesaid and may fix the date as from which such order shall take effect and thenceforth such order shall be observed until the same expires or is revoked or modified by a further order of the Minister made in pursuance of this section. Provided that before making an order under this section the Minister shall cause an inquiry to be held with reference thereto in pursuance of the Board of Trade Arbitrations &c. Act 1874 as applied by this section.

(2) No application may be made under this section for a general revision of rates dues tolls and charges for the time being authorised under this Act within twelve months after the date of an order made by the Minister for a general revision thereof and no application may be made for a revision of any particular rates dues tolls or charges within twelve months after the date of an order made by the Minister for a general revision or of any previous application for a revision of the particular rates dues tolls or charges in question.

A.D. 1924.

(3) The provisions of Part I. of the Board of Trade Arbitrations &c. Act 1874 shall apply for the purposes of this section—

(a) as if the Minister were referred to therein in lieu of the Board of Trade;

(b) as if the person or persons duly authorised to hold any inquiry thereunder were the rates advisory committee constituted under the Ministry of Transport Act 1919 or any sub-committee thereof to which the said advisory committee may under section 2 of the Harbours Docks and Piers (Temporary Increase of Charges) Act 1920 have delegated their powers or in the event of the said advisory committee ceasing to exist some persons with similar qualifications to be appointed for the purpose by an order of the Minister under section 2 of the said Act of 1874; and

(c) as if in section 4 of the said Act of 1874 the words “under the seal of the Minister of Transport” were substituted for the words “by writing under the hand of the President or of one of the secretaries of the Board.”

(4) An application made to the Minister under this section shall be accompanied by such information and particulars as the Minister may consider relevant certified in such manner as he may require and the Minister and the body or persons holding an inquiry for the purposes of this section may call for such documents and accounts as they may consider relevant and may hear such witnesses as they shall think fit and shall have power to take evidence on oath and for that purpose may administer oaths.

Costs of
Act.

5. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

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Eastern Railway (Dock Charges) Act, 1924.

The SCHEDULE referred to in the
foregoing Act.

A.D. 1924.

Acts and Order.	Undertakings to which applicable.
Carlisle and Silloth Bay Railway and Dock Act 1855 - - - -	Silloth Dock.
North British Railway Silloth Railway and Dock (Lease) Act 1862 - -	
North British Railway (Amalgamations &c.) Act 1880 - - - -	
Blyth and Tyne Railway Consolidation and Extensions Act 1854 -	North Blyth Staiths.
North Eastern Railway Act 1893 -	South Blyth Staiths.
North Eastern Railway Act 1911 -	Percy Main (Northumberland Dock) Staiths.
North Eastern Railway Act 1887 -	Dunston Staiths.
North Eastern Railway Act 1898 -	
North Eastern Railway Act 1909 -	
Jarrow Dock and Railway Act 1854 -	Tyne Dock.
North Eastern Railway Company's (Additional Powers) Act 1874 -	
North Eastern Railway Act 1891 -	
North Eastern Railway Act 1908 -	
North Eastern Railway Act 1909 -	The docks at Hartlepool and West Hartlepool.
West Hartlepool Harbour and Railway Act 1852 - - - - -	
North Eastern Railway Company's (Additional Powers) Act 1874 -	
North Eastern Railway (General) Act 1883 - - - - -	
North Eastern Railway Act 1891 -	
Hartlepool Port and Harbour Order 1904 confirmed by Pier and Harbour Orders Confirmation (No 2) Act 1904	
North Eastern Railway Act 1905 -	
North Eastern Railway Act 1909 -	Middlesbrough Dock.
North Eastern Railway Company's Act 1869 - - - - -	
North Eastern Railway Company's (Additional Powers) Act 1874 -	
North Eastern Railway Act 1891 -	
North Eastern Railway Act 1897 -	
North Eastern Railway Act 1909 -	
North Eastern Railway Act 1914 -	

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Acts and Order.

Undertakings to which
applicable.

Kingston-upon-Hull Dock Act 1774 -
Kingston-upon-Hull Dock Act 1802 -
Kingston-upon-Hull Dock Act 1805 -
Kingston-upon-Hull Dock Act 1844 -
Kingston-upon-Hull Dock Act 1845 -
Hull Dues Act 1852 - - - -
Hull Docks Act 1861 - - - -
Hull Docks Act 1866 - - - -
Hull Docks Act 1867 - - - -
Hull Docks Act 1877 - - - -
Hull Barnsley and West Riding Junction Railway and Dock Act 1880 -
Hull Barnsley and West Riding Junction Railway and Dock (New Works) Act 1882 - - - -
Hull and Barnsley Railway Act 1907
North Eastern Railway (Hull Docks) Act 1893 - - - -
Hull Joint Dock Act 1899 - - - -
North Eastern Railway Act 1905 -
North Eastern Railway Act 1909 -

The docks at Hull.

Great Eastern Railway (Capital &c.) Act 1865 - - - -
Great Eastern Railway (General Powers) Act 1878 - - - -
Great Eastern Railway (General Powers) Act 1893 - - - -
Great Eastern Railway (Lowestoft Harbour) Act 1897 - - - -
Great Eastern Railway Act 1902 -
Great Eastern Railway Act 1903 -
Great Eastern Railway Act 1912 -

Lowestoft Harbour.

Harwich Improvement Quays and Pier Act 1851 - - - -

Harwich Quays and Piers.

Manchester Sheffield and Lincolnshire Railway Act 1849 - - - -
Great Central Railway (Grimsby Fish Dock) Act 1912 - - - -

Grimsby Docks.

Humber Commercial Railway and Dock Act 1901 - - - -
Humber Commercial Railway and Dock Act 1904 - - - -

Immingham Dock.

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Eastern Railway (Dock Charges) Act, 1924.

Acts and Order.	Undertakings to which applicable.	A.D. 1924.
Great Central Railway Act 1907	- Winteringham Haven.	
Buckley Railway Act 1860-	-	
Wrexham Mold and Connah's Quay	} Connah's Quay Dock.	
Railway Act 1882 - - -		

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